HCC16/26
CASE NO HCCR1892/25

THE STATE

VS

ELLIAS TASIYANA

IN THE HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
CHINHOYI, 17/20 MARCH 2026

Assessors: *1. Mr. Manyangadze*
2. Mr. Mutayiwa

K Teveraishe, for the State
W. Chipato, for the accused

Criminal Trial

BACHI MZAWAZI J:

The accused and the deceased where living as husband and wife though unofficially married. Their relationship started at some mine in *Ngezi,* where the accused worked as a small-scale chrome miner. They then moved to the accused's rural home in *Tasiyana* homestead village 14 *Bumbe, Mhondoro Ngezi ,* where they allegedly stayed harmoniously for a good year before the tragic incident. They shared the homestead with the accused 's mother, but lived separate lives under the same compound but different roofs. The two had an infant child together.

It is alleged that the accused attacked the deceased with a shovel, multiple times on several parts of her body and head as evidenced by the autopsy report adduced on record as exhibit 1. The offence took place around 4am in the morning of the 6th of July 2025, in the couple's single multi-purpose dwelling. Due to the brutality and intensity of the blows the deceased died on the spot. The accused is being charged of murder as defined in s47(1) of the Criminal Law (Codification) and Reform Act [Chapter 9:23].

Whilst the accused does not deny the *acteus reus* of striking the deceased to death with a spade, he proffers a defence of lack of the requisite *mens rea* to end the life of the

deceased. It is his defence that, he had gone to work at the mine late the evening of the 5th of July 2025. Upon his return around 4am on the 6th of July 2025, he accosted the deceased with another man in his bedroom. He first heard suspicious voices which led him to force his entry into the room. He was met by the deceased's lover who was holding the murder weapon intending to strike him. He wrestled for the possession of the weapon and managed to disarm the intruder. When he was about to strike the deceased's paramour, the deceased who was sleeping on the bed, jumped in- between and the blow meant for the alleged lover deflected onto her. She then fell onto some sharp objects referred to as the accused's mine work tools kept in the house. Of note, later into his oral defence, the accused contradicted himself by saying, the deceased was standing behind her lover when she moved in between them.

We must hasten to say that though the accused adopted his defence outline as part of his defence, he did a disservice to himself. The court is compelled to analyse the said admitted evidence against his oral evidence. There are material discrepancies in both his evidences and the evidence adduced whilst he was cross examining the two State witnesses who gave oral evidence. We will interrogate and critique these inconsistencies in the final analysis of evidence.

What emerges from the accused's various renditions of the events, is that, he is painting a picture of the presence of provocation, in that he found another man in his 'matrimonial' home with his 'wife' (albeit not recognisably married}. Further, that, he was under an imminent attack and had to defend himself. That is, the so-called boyfriend was armed and waiting to strike him with the shovel. Lastly, that, the deceased died as a result of a deflected blow meant for the lover who escaped the scene soon afterwards.

As is the settled position of the law, the State's main task is to prove the essential elements of the offence beyond a reasonable doubt and adduce evidence that rebuts all the species of the accused's defence. It is our considered view that the State successfully did so through all its witnesses, particularly the two who gave evidence in court.

In her testimony, the first State witness, the mother of the accused *Juliana Tasiyana*, proved that, there was no evidence of any third party, other than the deceased and the accused at the time of the commission of the offence. This automatically eliminated all the defences of provocation, self-defence and deflected blow.

We find no reason to believe that the witness, being the biological mother of the accused had any reason to lie against her own flesh and blood. The son, accused person, from his perceived demeanour in court showed that he respected his mother. He did not openly and brazenly oppose her evidence.

The mother in turn, attested to the absence of acrimony or a hostile relationship between the two of them. It was her evidence that, during the couple's one-year stint in her compound they lived visibly peacefully and cordially. There were of course, according to her, rumours of some previous infidelity issues at the mining compound but not during the deceased's stay in her village which from her point of view did not mar their relationship. She testified that, though her own room was a few metres away from that of the accused, on the day of the murder she had seen the deceased and the accused love- dubbing the whole day enjoying each other's company. They even went bathing together late that evening. This was corroborated by the accused himself.

The witness said according to her recollection and knowledge, the accused for the whole week to the occurrence, never left the compound up to the time she was awoken by a piercing scream from the deceased summoning her. When she arrived at the door of the couples' room, she found the door locked inside with a latch key. She banged the door asking to be let in. When the latch-key was eventually released, she was greeted by a pool of blood and the deceased's lifeless body. It was her evidence that when the deceased came out, he was nude. She said she could hardly recognise him as he looked like a possessed person and was exhibiting violence. Notably, this aspect of the witness's evidence was corroborated by the accused when he confirmed that he was confused and behaved as such when he opened the door for his mother.

Discernibly, in cross examining the first witness, the accused, initially denied that the door was locked from inside. He then admitted in his oral evidence that the door was locked, but locked after the intruder had bolted. It is true that, the first witness may not have seen the accused's movements after she last witnessed the couple going for a bath together, and she did not actually witness what transpired before she heard the scream, but we find her to be a credible witness as the rest of her evidence was not rebutted.

Further, given the distance between her dwelling and that of the accused and her reaction time to the scream, logically, she will not have failed to see the presence or the bolting of the alleged boyfriend. What further, discredits the accused's story is that, the

boyfriend story, only emerged on the day of the trial. He did not disclose the same to the mother, as it is clear, there was no one on the day and at the time of the murder. He failed to mention it when he was then apprehended by his fellow villagers. To the police he admitted telling them a different reason for killing the deceased. He did not state any boyfriend's presence.

The accused told the court that he lied to the police as he wanted the boyfriend issue to remain his guarded secret. This jealously kept secret was only to be revealed in court. This admission of stating before the court, grin faced that he deliberately lied to the police, coupled with all the variations to his story which did not add up, further dented his credibility.

Philemon Mahukazuva, the second States witness's evidence though credible was of little probative value. It served to corroborate mostly that which was not disputed. That is to say, the accused had bludgeoned his wife to death with a spade. In addition, that accused was behaving like a mad violent person, making it difficult for the villagers to even come close to him in order to apprehend him.

His testimony also served to illustrate the close and revered presence he had in accused's life, in the sense that had there been a boyfriend issue, as the cause of the crime, the accused would have spilt it out to him. We have, nevertheless, already rejected the accused's version that the boyfriend issue was his secret from the time of his apprehension by the community, arrest by the police, stay in prison only to be revealed on the day of the trial.

Moreover, the law in section 257 of the Criminal Procedure and Evidence Act says:

> Where in any proceedings against person evidence is given that the accused on being –
> questioned as a suspect by a police officer investigating an offence; or
> charged by a police officer with an offence; or
> informed by a police officer that he might be prosecuted for an offence,
> fails to mention any fact relevant to his or her defence in those proceedings,
> being a fact which, in the circumstances existing at the time, he or she could reasonably have been expected to have mentioned when so questioned,
> charged or informed, as the case may be, the court, in determining whether there is any evidence …may draw such inferences .

In *casu*, the accused did not disclose that defence to anyone prior to the court proceedings.

The court also learnt that the accused consumed poison soon after the murder. After his arrest he was hospitalised but escaped from lawful custody from hospital before

discharge. A combination of these two aftermaths is far from acts of an innocent man. He has however, already been charged, convicted and has served time for the escape from lawful custody offence.

On final analysis, the totality of both direct and circumstantial evidence proves that, there was no boyfriend in the matrix as already observed. This is a figment of the accused's imagination. The door was locked from inside and was only opened after the accused's mother who had responded to the scream, was begging to be let in. It does not make sense that, after striking the deceased in the manner the accused did, with such force that fractured and perforated the skull, the accused then chased the boyfriend. Then comes back locks the door, changes clothes soiled not by blood but from mining activities as per his versions. All this happening without checking on the victim of his so-called deflected blow, who according to him had also fallen onto some sharp instruments. This is, in the face of a witness who saw him in the nude incomprehensible.

Coincidentally, the same was observed in State *v Tevedzayi* HH 206-18 where the court made a similar finding as follows;

The fact that the door was locked from inside does not corroborate the evidence of the accused that there was a man the house that night. We do not believe his version that he left the house at all that night and on his return to pick forgotten items he had then stumbled on a lover who engaged him in battle. His added motive which he presented only at the trial being that he acted in self-defence against an assault by his wife and her lover, was clearly an afterthought. It was far from clear how the lover was said to have gotten out of the house that night since the house was locked from inside. The accused did not mention re-bolting the door at any point. - something he forgot to do because he was making up his version as the trial unfolded" The outstanding issue is whether the State has managed to prove murder with actual or constructive intention.

The accused's story in all its variants is not only improbable but outright false, as is clear from *Mr Chipato*, counsel for the accused's closing submissions. *Mr Chipato* was gentlemanly enough not to waste the court's time by motivating any of the defences that had emerged during trial. He only concentrated on the crux consideration, of legal intention, from his own perception.

In that case, we are left with no choice but to cement our initial rejections to the accused's defences in their entirety. There was no intruder, no provocation, no attack at all and no deflected blow. The deceased died dressed in leggings. Had there been an adulterous encounter she would not have been fully dressed. In that regard, that a murder was committed

is out of question? The only outstanding issue is whether or not the State has proved direct or indirect intention to kill.

The indications made on the sketch plan and exhibits produced in court show only one murder weapon, the spade. No other blooded weapon or item was recovered by the police from the crime scene. Had the deceased's injuries been as a result of her fall on sharp objects said to be mining tools, with no apparent description, as the accused wanted the court to believe, these tools would have been recovered by the police who attended the scene of the crime and during investigations. There is no reason why the accused would also have failed to inform the police during the initial stages of his arrest.

In conclusion, the weapon used, the multiplicity of the blows, the force used, the depth and extent of the injuries and the part of the body the blows were aimed as depicted by the autopsy report, cumulatively points not towards legal intention but actual intention.

Though due to the inconsistencies in the accused stories, the true motive behind the killings will forever remain a mystery and his secret, what is evident is, this was a well calculated cold- blooded brutal murder. This is the height of domestic violence perpetrated on women victims, vulnerable persons.

We are thus inclined to agree with *Ms Teveraishe* for the State rather than *Mr Chipato* for the defence, in that from a holistic assessment of evidence, this was murder with actual intent as opposed to legal intent.

The distinction between actual and legal intention has been regurgitated in several academic writings and case law. Professor Feltoe in his book a *Guide to Zimbabwe Criminal Law*, 5th edition, spells out that, with actual intention, *dolus directus*, the accused desires the death, death is his main aim and object. In other words, the accused will set out, plan, meditate and achieve death as his ultimate end.

State v Wairosi SC 20/1 is authority that, in the absence of pre-planning, *dolus directus* has also been legally inferred from the type of weapon used, the degree of force used, the part of the body where the blows were directed at and the multiplicity of blows effected.

On the other hand, indirect intention. also interchangeably known as *dolus eventualis,* legal or constructive intention, is referred to as a state of mind where an accused

person while not necessarily desiring to kill, realizes there is a real risk or possibility that death will ensue as a result of their conduct but nevertheless proceeds regardless of the consequence. In other words, death was reasonably foreseeable through the accused's actions. The appellate cases, *Director of public Prosecution, Gauteng v Pistorius* (96/2015) [2915] ZASCA and *Ndzombe* v S SC77/14 amongst others, are apposite.

Accordingly, the accused is found guilty of murder with actual intention. *S v Mutisi* HMT28/20 is also on point.

Sentencing judgment

The accused person stands convicted of one of the most serious offences, that is murder with actual intention. Life is sacrosanct, that is why it is protected by even the Supreme Law of the land that is, the Constitution itself. No one is entitled to expend life other than the giver of life, the Creator himself. The deceased was a 30-year-old youthful first-time mother.

It dawned from the victim impact statement, that the deceased had been a victim of repeated violent domestic violence at the hands of the accused. Numerous police reports had been made coupled with endless hospitalizations. As is always the norm and as in this case, the battered women syndrome, the victim always heads back to the perpetrator in the face of interventions and remonstrations from relatives and next of kin. Domestic gender- based violence has remained a thorn in the flesh in this jurisdiction. Despite several government policy initiatives, awareness campaigns, and laws on gender- based violence, the challenge remains in effective implementation.

Though not customarily married, for four years the deceased considered the couple's dwellings as her home and sanctuary. She lost her life in what can be termed her safe haven. The manner in which the victim lost her life is callous and brutal. The offence was committed in the presence of a three-year-old child who has not only been orphaned but inevitably traumatized.Instead of being remorseful in word and in action, the accused had the audacity to disrespect the dead by inventing false infidelity accusations. His conduct after the commission of the offence and in court does not show any contrition.

The history of the gender-based violence and the manner the deceased met her final end and the weapon which was used all speak to murder in aggravated circumstances.

The sentence fitting an offence of this magnitude is 25 years to life imprisonment. In our law life imprisonment is 25 years. The sentence in *S v Mutisi,* above, is of guidance. Accordingly,

It is ordered that

The accused is sentenced to 25 years imprisonment.

Bachi Mzawazi J

National Prosecuting Authority, *the State's Legal Practitioners*

D R Chirairo Law Chambers., the accused's Legal Practitioners